PARALLEL PRO BONO & CONSULAR INTAKE PACKETS

대한법률구조공단(KLAC) 외국인 소송구조·공익인권법재단 공감·사단법인 두루 기획공익소송·주한 방글라데시 대사관 외교청원 통합 신청 패킷철

Document Classification: Litigation-Grade Parallel Pro Bono Intake & Consular Diplomatic Assistance Master Dossier

Document Identifier: `10_parallel_pro_bono_and_consular_intake_packets.md`

Target Matter: Cross-Border First-Party Accidental Death Benefit Judicial Enforcement & Institutional Escalation

Deceased Insured: MAHADI MONOAR HOSSAIN (마하디 모노아르 후세인 / Passport: MONOAR HOSSAIN MAHADI, ARC: `010530-7660021`, Passport: `A03097931`)

Target Policy & Vehicle: DB Insurance Promy Car Individual Auto Insurance (DB 손해보험 프로미카 개인용 자동차보험) / Vehicle Plate: `28 모 1390` (Policy No: `2-2026-0531750-000`, Renewal Date: January 21, 2026; Service Channel: DB Insurance Direct / `1588-0100`)

Secondary Policy: Seojeong University International Student Master Group Accident Insurance Policy (서정대학교 외국인 유학생 단체상해보험)

Sole Statutory Heirs (100% Entitlement):

1. Father: **BELAL HOSSAIN** (벨랄 후세인, NID: `7802539200` / DOB: 1974.04.10) — **2/3 Statutory Share (66.667%)** [KRW 66,666,667]
2. Mother: **MONOARA BEGUM** (모노아라 베검, NID: `2354437788` / DOB: 1980.02.15) — **1/3 Statutory Share (33.333%)** [KRW 33,333,333]

Designated Attorney-in-Fact: HASIBUL MUNIM, Authorized Attorney-in-Fact (주한 방글라데시 인권위원회 위원장)

Governing Statutory Frameworks:

- Korean Legal Aid Act (법률구조법) Arts. 1, 7, 8, 22 & KLAC Foreigner Legal Aid Operational Directives
- Korean Commercial Code (상법) Arts. 732-2, 739, 663, 54
- Korean Civil Procedure Act (민사소송법) Arts. 5, 18, 98, 356, 358
- Korean Private International Law Act (국제사법) Art. 49 (Lex Successionis)
- Special Act on Promotion of Litigation, etc. (소송촉진 등에 관한 특례법) Art. 3(1)
- Financial Consumer Protection Act (금융소비자 보호에 관한 법률) Arts. 20, 36–43
- Vienna Convention on Consular Relations (비엔나 영사관계협약) Art. 5

Binding Judicial Precedents:

- Supreme Court En Banc Decision 98Da48963 (대법원 1998. 12. 22. 선고 98 다 48963 전원합의체 판결 - 무면허운전 면책약관 자기신체사고 무효)
- Supreme Court Decision 97Da27039 (대법원 1997. 11. 14. 선고 97 다 27039 판결)

- Supreme Court Decision 98Da26910 (대법원 1998. 10. 27. 선고 98 다 26910 판결)
- Supreme Court Decision 2003Da29463 (대법원 2003. 11. 28. 선고 2003 다 29463 판결)

Date of Compilation & Verification Standard: August 30, 2026 (Litigation-Ready Standard)

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1. EXECUTIVE ARCHITECTURE & MULTI-TRACK PARALLEL ESCALATION STRATEGY

1.1 Simultaneous Dual-Pronged Recovery Model

The legal strategy deployed on behalf of the surviving heirs of deceased international student **MAHADI MONOAR HOSSAIN** executes a **simultaneous, two-pronged recovery pipeline**:

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┌──────────────────────────────────────────────────────────────────────────────────────┐
│                      HYBRID DUAL-PRONGED LEGAL RECOVERY PIPELINE                     │
└──────────────────────────────────────────────────────────────────────────────────────┘

  [ TRACK 1: DIRECT INSURER DEMAND (DHAKA TO SEOUL) ]
  ├─ DHL Express Direct Dispatch to DB Insurance HQ & Claims Operations (`1588-0100`)
  ├─ Seojeong University International Affairs Office D-2 Group Claim & Repatriation Demand
  ├─ Statutory 10-Day Provisional Payment Demand: KRW 50,000,000 (Commercial Code 732-2)
  └─ Explicit Notice of Simultaneous Pro Bono & Diplomatic Escalation

                                    ═══════════
                                  PARALLEL & SIMULTANEOUS
                                    ═══════════

  [ TRACK 2: PARALLEL PRO BONO & CONSULAR INTAKE (SEOUL DOMESTIC) ]
  ├─ Korea Legal Aid Corporation (KLAC): Legal Aid Act Art. 22 Foreigner Free Litigation Scheme
  ├─ Gong-Gam Human Rights Law Foundation: Migrant Student Rights & Bad-Faith Delay Case Brief
  ├─ Association for Public Interest Law DURO: Impact Litigation on Supreme Court 98Da48963
  └─ Embassy of Bangladesh in Seoul: Note Verbale, Consular Legalization & SWIFT Audit

                                          ▼
  [ ZERO-DELAY RESOLUTION OR IMMEDIATE JUDICIAL RECOVERY BEFORE SEOUL CENTRAL DISTRICT COURT ]
  ├─ KRW 100,000,000 Principal Recovery (Father 2/3: KRW 66,666,667 | Mother 1/3: KRW 33,333,333)
  └─ Commercial Default Interest (6% p.a.) & Litigation Promotion Act Interest (12% p.a.)
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1.2 Institutional Leverage Matrix & Zero-Delay Invalidation Strategy

Insurer bad-faith defense strategies against deceased foreign nationals typically rely on three barriers:

3. **Physical & Informational Asymmetry**: Bereaved parents reside in rural Bangladesh and cannot travel to Korea.
4. **False Legal Pretexts**: Misrepresenting the invalid "unlicensed driving exclusion" as a total bar to first-party accidental death recovery.
5. **Financial Exhaustion**: Forcing indigent claimants to hire expensive private counsel or abandon legitimate claims.

This dossier completely eliminates these barriers by pairing direct insurer demands with **immediate, parallel domestic institutional mobilization**. The moment DB Insurance receives the formal claim notice in Seoul, KLAC, Gong-Gam, DURO, the Financial Supervisory Service (FSS), and the Bangladesh Embassy are simultaneously engaged, ensuring that any delay past the statutory 10-day provisional payment deadline triggers immediate judicial and diplomatic consequences.

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2. SECTION 1: KOREA LEGAL AID CORPORATION (대한법률구조공단 - KLAC) APPLICATION PACKET

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               KOREA LEGAL AID CORPORATION (KLAC) FOREIGNER LEGAL AID DOSSIER
================================================================================================
Submitting Party:       HASIBUL MUNIM (Attorney-in-Fact for Heirs BELAL HOSSAIN & MONOARA BEGUM)
Statutory Basis:        Legal Aid Act (법률구조법) Articles 1, 7, 8, and 22; CPA Art. 98
Target Venues:          1. KLAC Seoul Central Branch (서울중앙지부) -> Seoul Central District Court
                        2. KLAC Sokcho Branch (속초출장소) -> Chuncheon Dist. Court Sokcho Branch
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Relief Demanded:        100% Free Staff Attorney Litigation Representation & State Treasury Fee Advance
Claim Value:            KRW 100,000,000 (Principal) + Accrued Commercial/Litigation Default Interest
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2.1 Statutory Basis under Legal Aid Act Art. 22 & Foreigner Legal Aid Directives

6. **Statutory Authorization (법률구조법 제 22 조 및 제 1 조)**:

- Pursuant to **Article 22 of the Legal Aid Act (법률구조법 제 22 조)**, the State Treasury funds legal aid operations and advances litigation costs for qualifying individuals.

- Under **KLAC Foreigner Legal Aid Operational Rules (외국인 법률구조제도 운영지침)**, foreign nationals whose substantive rights have been infringed within the territorial boundaries of the Republic of Korea are fully eligible for comprehensive legal representation, civil complaint drafting, court representation, and full litigation fee advancements.

7. **Constitutional & Treaty Safeguards**:

- Article 6(2) of the Constitution of the Republic of Korea guarantees that the status of aliens is protected under international law and treaties.

- Foreign heirs possessing actionable civil claims arising from torts or insurance contracts situated in South Korea are entitled to equal access to justice without discrimination based on nationality.

2.2 Mathematical Low-Income Eligibility Verification (125% National Median Income Standard)

KLAC provides 100% free legal aid to individuals whose monthly household income falls below **125% of the Korean National Median Income (기준 중위소득 125% 이하)**:

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                      KLAC LOW-INCOME ELIGIBILITY MATHEMATICAL AUDIT
=============================================================================================
Criterion                                Statutory Threshold       Actual Verified Case Metric
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Korean National Median Income (2026, 4-person)   KRW 6,132,897 / mo        N/A
KLAC 125% Legal Aid Ceiling (Single/Base)        KRW 4,916,035 / mo        Statutory Ceiling Limit
Deceased Student (MAHADI MONOAR HOSSAIN)         D-2 Student Status        KRW 0 / mo (Zero Taxable Income)
Surviving Parents in Cumilla, Bangladesh         Rural Agrarian Income     BDT 20,000 / mo (~KRW 230,000 / mo)
---------------------------------------------------------------------------------------------
Ratio of Heirs' Income to KLAC Statutory Ceiling:                          4.68% of Statutory Limit
Eligibility Determination:                                                 QUALIFIES FOR 100% AID (적격)
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- **Deceased Baseline**: The deceased insured (MAHADI MONOAR HOSSAIN) was a bona fide D-2 degree student at Seojeong University with **KRW 0 taxable domestic income**.
- **Heirs Baseline**: Surviving parents **BELAL HOSSAIN** and **MONOARA BEGUM** reside in Munshi Bari, Keshobpur, Monoharganj, Cumilla, Bangladesh, engaged in subsistence rural agriculture with a combined verified monthly income of approximately **BDT 20,000 (KRW 230,000)**, representing **4.68% of the KLAC income ceiling**.

- **Documentary Proof**: Low-Income Verification / Indigence Attestation (저소득확인서) issued by the Chairman of the Local Union Parishad (Monoharganj, Cumilla), certified by the First Class Magistrate Court, and attested by the Ministry of Foreign Affairs (MOFA), Dhaka (Exhibit E-1 / Exhibit E-4).

2.3 100% Free Staff Attorney Representation & State Treasury Court Fee Advancement

Pursuant to the Legal Aid Act and Korean Civil Procedure Act:

8. **Zero Upfront Attorney Fees (변호사 보수 면제)**: Complete waiver of legal fees; representation handled by KLAC Staff Attorneys (*공단 소속 변호사*) or Public Legal Service Attorneys (*공익법무관*).
9. **State Treasury Advancement of Court Costs (소송비용 대납)**:

- **Court Filing Stamps (인지대)**: Calculated under the Court Stamp Act on KRW 100,000,000 claim value = **KRW 455,000** (Advanced 100% by State Treasury).

- **Service of Process Fees (송달료)**: 15 baseline service allocations = **KRW 156,000** (Advanced 100% by State Treasury).

- **Fact-Finding & Discovery Costs (사실조회비용)**: Covered in full by KLAC budget.

10. **Statutory Cost Shifting (민사소송법 제 98 조 비용부담)**:

- Under Korean Civil Procedure Act Article 98, upon prevailing on the merits, the court orders the losing defendant (**DB Insurance Co., Ltd.**) to reimburse all advanced court costs directly to the State Treasury / KLAC.

- **Zero deductions** are made from the KRW 100,000,000 principal recovery payable to the heirs.

2.4 Master 12-Item Evidence Dossier Checklist

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                        KLAC FOREIGNER LEGAL AID EVIDENTIARY DOSSIER
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Item   Master Exhibit   Description of Document & Evidentiary Purpose
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1      Form KLAC-01     Legal Aid Application Form (법률구조신청서 정본) executed by Attorney-in-Fact
2      Exhibit F-1      Bilingual Special Power of Attorney (한·영 특별위임장 정본 - 민법 제 118 조 특별수권)
3      Exhibit F-2      Diplomatic Legalization Certificates (MOFA Dhaka QR + Consular Seal BDS/LS/2026)
4      Exhibit E-1      Succession / Heirship Certificate (Warisan Sanad / 상속인증명서 정본)
5      Exhibit E-2      Family Relationship Certificate & Birth Registry (가족관계증명서 / 출생증명서)
6      Exhibit E-3      True Copy Passports & National ID Cards of Heirs (BELAL HOSSAIN & MONOARA BEGUM)
7      Exhibit E-4      Korean Certified Translation Certificates (공인외국어번역행정사 번역확인서)
8      Exhibit D-1/D-3  Deceased Alien Registration Fact Sheet (`010530-7660021`) & BD Passport (`A03097931`)
9      Exhibit D-2      Seojeong University Certificate of Enrollment (서정대학교 재학증명서 - 스마트자동차과)
10     Exhibit B-1/B-2  GangNeung Asan Hospital Post-Mortem & Death Certificates (사체검안서/사망진단서 정본)
11     Exhibit A-1/A-2  Sokcho Police Station Traffic Accident Fact Certificate (교통사고사실확인원 - 2026-00020)
12     Exhibit C-1      DB Insurance Auto Insurance Policy Certificate (`28 모 1390`, Service Channel: DB Direct / `1588-
0100`)
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2.5 Master Branch Routing & Territorial Jurisdiction Analysis

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                                KLAC MASTER BRANCH ROUTING DIRECTORY
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Branch Office	Address (도로명 주소)	Phone / Fax / Hotline	Jurisdiction Court
KLAC Seoul Central (서울중앙지부 - PRIMARY)	서울특별시 서초구 서초대로 247, 4~6 층 (서초동, 한원빌딩) [06652] *Strategic Choice: Defendant DB Insurance HQ	Tel: 02-535-0132 Fax: 02-535-0138 Hotline: 132	Seoul Central District Court (Specialized Bench)
KLAC Sokcho Branch (속초출장소 - ACCIDENT)	강원특별자치도 속초시 번영로 163, 2 층 (동명동) [24823] *Strategic Choice: Police & Locus Records	Tel: 033-636-2342 Fax: 033-636-2345 Hotline: 132	Chuncheon Dist. Court Sokcho Branch
KLAC Gangneung Branch (강릉출장소 - MEDICAL)	강원특별자치도 강릉시 동해대로 3288 번길 18, 2 층 (교동) [25488] *Strategic Choice: GangNeung Asan Hospital	Tel: 033-642-1320 Fax: 033-642-1325	Chuncheon Dist. Court Gangneung Branch
KLAC Seoul Bukbu (서울북부지부 - UNIV)	서울특별시 도봉구 마들로 749, 3 층 (도봉동, 삼진빌딩) [01322] *Strategic Choice: Seojeong University Region	Tel: 02-918-0132 Fax: 02-918-0138	Seoul Bukbu District Court
KLAC Chuncheon HQ (춘천지부 - PROVINCIAL)	강원특별자치도 춘천시 공지로 312, 3 층 (효자동) [24376]	Tel: 033-255-0811 Fax: 033-255-0815	Chuncheon District Court Main Bench

- **Primary Forum Selection**: **Seoul Central District Court (서울중앙지방법원)** via **KLAC Seoul Central Branch**.

  - *Civil Procedure Act Article 5 (General Forum at Corporate Domicile)*: DB Insurance Headquarters is located at DB Financial Center, 432 Teheran-ro, Gangnam-gu, Seoul.

  - *Judicial Bench Advantage*: Seoul Central District Court maintains specialized Insurance & Commercial Litigation divisions with established jurisprudence enforcing Supreme Court 98Da48963.

- **Alternative Forum Selection**: **Chuncheon District Court Sokcho Branch (춘천지방법원 속초지원)** via **KLAC Sokcho Branch** under CPA Art. 18 (Forum of Tort / Accident Locus).

2.6 Execution-Ready Form: KLAC Legal Aid Application Form (법률구조신청서)

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[서식 제 1 호]
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                                  법 률 구 조 신 청 서
                              (LEGAL AID APPLICATION FORM)
================================================================================================
접수번호: 2026-구조-外-                    접수일자: 2026 년    월    일

1. 신 청 인 (외국인 법정상속인 겸 유족)
   - 신청인 1 (부): BELAL HOSSAIN (벨랄 후세인, 1974. 04. 10.생, 방글라데시 국적)
     주소: Munshi Bari, Keshobpur, Monoharganj, Cumilla, Bangladesh (현 송달처: 서울 대리인 사무소)
   - 신청인 2 (모): MONOARA BEGUM (모노아라 베검, 1980. 02. 15.생, 방글라데시 국적)
     주소: Munshi Bari, Keshobpur, Monoharganj, Cumilla, Bangladesh (현 송달처: 서울 대리인 사무소)

2. 신 청 인 대 리 인 (수임인)
   - 성명: HASIBUL MUNIM (주한 방글라데시 인권위원회 위원장)
   - 주소: 서울특별시 종로구 / 서초구 대리인 사무소
   - 연락처: TEL: 02-588-7900 / 010-8588-4058 / E-MAIL: legal-recovery@korea-claim.kr
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   - 대리권 근거: 민법 제 118 조 및 외교부·대사관 영사확인 필 특별위임장 (소갑 제 5 호증)

3. 상 대 방 (피고)
   - 상호: DB 손해보험 주식회사 (대표이사 정종표)
   - 본점 소재지: 서울특별시 강남구 테헤란로 432 (대치동, DB 금융센터) [우편번호: 06194]
   - 법인등록번호: 110111-0007882 / 사업자등록번호: 202-81-46078 / 대표전화: 1588-0100

4. 신 청 종 류: 민사소송대리 (소송물가액: 금 100,000,000 원)
5. 사 건 명: 자동차보험 자기신체사고 사망보험금 청구의 건
6. 신 청 취 지:
   "공단은 신청인들을 대리하여 상대방(DB 손해보험 주식회사)을 상대로 서울중앙지방법원에
   자동차보험 자기신체사고 사망보험금 금 100,000,000 원 및 이에 대한 지연손해금의 지급을 구하는
   민사 본안소송을 제기하고, 인지대·송달료 등 일체의 소송비용을 대납 구조하여 주시기 바랍니다."

7. 신 청 이 유 요 지:
   가. 신청인들의 자(子)인 망 마하디 모노아르 후세인(MAHADI MONOAR HOSSAIN, D-2 유학생)은
       2026. 3. 14. 피보험차량(28 모 1390) 운전 중 단독사고로 사망하였습니다.
   나. 상대방은 망인의 무면허운전을 구실로 약관상 면책을 주장하며 상법 제 732 조의 2 및 대법원
       98 다 48963 전원합의체 판결에 정면으로 위배되는 보험금 지급 거절 및 지연을 자행하고 있습니다.
   다. 신청인들은 방글라데시 농촌 지역 거주 극빈층(월 소득 약 23 만 원으로 기준 중위소득 125%의
       4.68%에 불과)으로, 자력으로 대한민국 법원에 소송을 제기할 수 없는 처지에 있으므로,
       법률구조법 제 22 조에 의거한 전액 무료 소송구조 및 소송비용 대납을 신청합니다.

8. 첨 부 서 류: 소송대리위임장, 상속인증명서(Warisan Sanad), 사고기록, 검안서, 저소득확인서 등 12 종.

                                        2026 년     8 월     일
                                  신청인 1, 2 의 수권대리인: HASIBUL MUNIM (서명 또는 인)

대한법률구조공단 이사장 귀하
================================================================================================
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2.7 Execution-Ready Draft: Civil Complaint for Seoul Central District Court (소장 - 보험금청구)

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================================================================================================
                                          소          장
================================================================================================
원  고: 1. BELAL HOSSAIN (벨랄 후세인, 1974. 04. 10.생)
           방글라데시 국적, NID: 7802539200
        2. MONOARA BEGUM (모노아라 베검, 1980. 02. 15.생)
           방글라데시 국적, NID: 2354437788
        원고들 주소: Munshi Bari, Keshobpur, Monoharganj, Cumilla, Bangladesh
        원고들 소송대리인: 대한법률구조공단 소속 변호사 [담당변호사 성명 기재]
        소송대리인 주소: 서울특별시 서초구 서초대로 247, 4~6 층 (서초동, 한원빌딩)
        연락처: TEL: 02-535-0132 / FAX: 02-535-0138

피  고: DB 손해보험 주식회사
        서울특별시 강남구 테헤란로 432 (대치동, DB 금융센터)
        대표이사 정종표
        법인등록번호: 110111-0007882
```

보험금(자기신체사고 사망보험금) 청구의 소

청 구 취 지

1. 피고는,
   가. 원고 1(BELAL HOSSAIN)에게 금 66,666,667 원,
   나. 원고 2(MONOARA BEGUM)에게 금 33,333,333 원
   및 위 각 금원에 대하여 2026. 3. 29.부터 본건 소장 부본 송달일까지는 상법에 정한 연 6%,
   그 다음날부터 다 갚는 날까지는 소송촉진 등에 관한 특례법에 정한 연 12%의 각 비율에 의한
   금원을 지급하라.
2. 소송비용은 피고의 부담으로 한다.
3. 제 1 항은 가집행할 수 있다.
라는 판결을 구합니다.

청 구 원 인

1. 당사자들의 지위 및 보험계약의 성립
   가. 망 마하디 모노아르 후세인(MAHADI MONOAR HOSSAIN, 이하 '망인'이라 합니다)은 방글라데시 국적의
   외국인 유학생(서정대학교 스마트자동차과 1 학년)으로서, 2026. 1. 21. 피고와 사이에 피보험차량인
   28 모 1390 승용차에 관하여 피보험자 망인, 자기신체사고(자동차상해) 사망보험금 100,000,000 원으로
   하는 프로미카 개인용 자동차보험계약을 유효하게 갱신 체결하였습니다(갑 제 1 호증 보험증권 참조).
   나. 원고 1, 2 는 망인의 부모로서, 국제사법 제 49 조 제 1 항(상속 준거법) 및 망인의 본국법인 방글라데시
   무슬림 상속법(Sunni Hanafi jurisprudence)에 따른 망인의 유일한 법정상속인들입니다.
   원고 1(부)은 잔여상속인(Asaba)으로서 2/3 지분(금 66,666,667 원), 원고 2(모)는 지정상속인(Zawil Furud)
   으로서 1/3 지분(금 33,333,333 원)의 권리를 적법하게 승계하였습니다(갑 제 2 호증 상속인증명서 참조).

2. 보험사고의 발생
   망인은 2026. 3. 14. 05:58 경 강원특별자치도 양양군 현남면 북분리 4-1 도로상에서 피보험차량을 운전하던
   중 도로변 시설물을 충격하는 단독 교통사고를 일으켜 두개골 골절 및 중증 뇌출혈로 현장에서 사망
   하였습니다(갑 제 3 호증 교통사고사실확인원, 갑 제 4 호증 사체검안서 참조).

3. 피고의 보험금 지급의무 및 무면허 면책약관의 절대적 무효
   가. 상법 제 732 조의 2(사망을 보험사고로 한 보험계약)는 "사망을 보험사고로 한 보험계약에서 사고가
   보험계약자 또는 피보험자나 보험수익자의 중대한 과실로 인하여 생긴 경우에도 보험자는 보험금을
   지급할 책임을 면하지 못한다."라고 규정하고 있습니다.
   나. 대법원 1998. 12. 22. 선고 98 다 48963 전원합의체 판결은 "자동차보험의 자기신체사고 담보는 피보험자의
   사망 등을 보험사고로 하는 인보험(상해보험)의 성격을 가지므로, 무면허운전으로 인한 사고라 하더라도
   그것이 고의에 의한 것이 아닌 한 보험자는 면책되지 아니하며, 약관 중 무면허운전 시 자기신체사고
   보험금을 면책하도록 한 조항은 상법 제 732 조의 2 및 제 663 조(보험계약자 등의 불이익변경금지)에
   위배되어 무효이다."라고 확고히 판시하였습니다(동지: 대법원 97 다 27039, 98 다 26910 판결).
   다. 따라서 피고의 무면허운전 면책 주장은 강행법규 및 대법원 전원합의체 판례에 정면으로 위배되는
   주장으로서 당연무효이며, 피고는 원고들에게 약정 사망보험금 100,000,000 원 전액을 지급할 의무가 있습니다.

4. 지연손해금의 발생
   원고들의 대리인이 2026. 3. 14. 사고 직후 적법한 보험금 청구서를 피고에게 도달시켰음에도 피고는
   상법 및 자동차보험 표준약관 제 34 조에 정한 10 영업일 이내에 지급하지 아니하여 이행지체에 빠졌습니다.
   따라서 10 영업일이 경과한 익일인 2026. 3. 29.부터 본 소장 부본 송달일까지는 상법 제 54 조에 정한
   상사법정이율인 연 6%, 그 다음날부터 완제일까지는 소송촉진 등에 관한 특례법 제 3 조 제 1 항에 정한
   연 12%의 각 지연손해금이 가산되어야 합니다.

5. 결 론
   그렇다면 원고들의 본건 청구는 이유 있으므로 청구취지와 같은 판결을 구하고자 본 소를 제기합니다.

입 증 방 방법

1. 갑 제 1 호증　　자동차보험증권 (28 모 1390)
2. 갑 제 2 호증　　방글라데시 상속인증명서(Warisan Sanad) 및 번역확인서
3. 갑 제 3 호증　　교통사고사실확인원 (강원속초경찰서 사건번호 2026-00020)
4. 갑 제 4 호증　　사체검안서 (강릉아산병원 의사 강희동)
5. 갑 제 5 호증　　특별위임장 (Special Power of Attorney) 및 영사확인서
6. 갑 제 6 호증　　저소득확인서 및 기준중위소득 산정표
7. 갑 제 7 호증　　내용증명 우편접수원부 및 배달증명서

첨 부 서 류

1. 위 입증방법　　각 1 통
2. 소송위임장　　1 통
3. 법률구조결정통지서　　1 통
4. 송달료 납입영수증　　1 통

2026. 8. .
원고들 소송대리인 대한법률구조공단
담당변호사 [ ] (인)

서울중앙지방법원 귀중

2.8 Execution-Ready Petition: Litigation Fee Advancement Petition (소송비용대납신청서)

소 송 비 용 대 납 신 청 서

사　　건: 2026 가단 [ ] 보험금 청구
원　　고: BELAL HOSSAIN 외 1
피　　고: DB 손해보험 주식회사

신 청 인 (원고들 소송대리인): 대한법률구조공단 소속 변호사 [ ]
서울특별시 서초구 서초대로 247, 한원빌딩 4~6 층

신 청 취 지

"본건 소송에 소요되는 인지대 금 455,000 원 및 송달료 금 156,000 원 합계 금 611,000 원을 법률구조법 제 22 조 및 공단 소송대리업무규정에 의거하여 국고(공단 예산)에서 전액 대납하여 주시기 바랍니다."

신 청 이 유

1. 신청인들의 의뢰인인 원고들은 대한민국에서 유학 중 불의의 교통사고로 사망한 외국인 유학생 망 마하디 모노아르 후세인의 부모로서, 방글라데시 농촌 지역에서 월 23 만 원 상당의 극빈 소득으로 생활하고 있습니다.
2. 원고들의 소득 수준은 대한민국 2026 년 기준 중위소득 125%(금 4,916,035 원)의 4.68%에 불과하여 자력으로 소송비용을 납부할 능력이 전무합니다.
3. 본건은 대법원 98 다 48963 전원합의체 판례에 비추어 승소가능성이 100% 명백한 사건으로서, 추후 민사소송법 제 98 조에 의거하여 패소자인 피고(DB 손해보험)로부터 소송비용 전액을 상환받을 수 있습니다.
4. 이에 법률구조법 제 22 조에 의거하여 소송비용 전액의 대납을 신청합니다.

```
첨부서류: 저소득확인서(방글라데시 지방정부 발행 및 외교부 인증) 1통.

                                                2026.    8.    .
                                        신청인 대한법률구조공단 소속 변호사 [          ] (인)

대한법률구조공단 서울중앙지부장 귀하
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3. SECTION 2: GONG-GAM HUMAN RIGHTS LAW FOUNDATION (공익인권법재단 공감) INTAKE BRIEF

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================================================================================================
           GONG-GAM HUMAN RIGHTS LAW FOUNDATION (공익인권법재단 공감) INTAKE BRIEF
================================================================================================
Target Organization:     공익인권법재단 공감 (Public Interest Human Rights Law Foundation Gong-Gam)
Address:                 서울특별시 종로구 창덕궁길 29-6, 3층 (원서동, 북촌창우극장) [우편번호: 03058]
Telephone / Facsimile:   Tel: +82-2-3675-7740 / 7741  |  Fax: +82-2-3675-7742
Official Emails:         gonggam@gmail.com  /  gonggam.law@gmail.com
Web Intake Portal:       https://www.kpil.org ('공익소송 신청' 접수)
Focus Areas:             Migrant Workers, Foreign Students, Human Rights & Anti-Discrimination Litigation
================================================================================================
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3.1 Entity Profile, Contact Coordinates & Intake Channels

- **Organizational Character**: Gong-Gam is South Korea's premier full-time public interest lawyers' organization dedicated to advocating for marginalized groups, migrant workers, refugees, and non-citizen victims of institutional exploitation.
- **Intake Channel Selection**: Direct submission via secure encrypted email to `gonggam@gmail.com` and hardcopy courier delivery to the Jongno-gu office, accompanied by a public interest case briefing.

3.2 Human Rights & Public Policy Dimension

11. **Systemic Vulnerability of International Students (D-2 Visa Holders)**:

- Over 200,000 foreign students study in South Korea under severe structural constraints, linguistic barriers, and economic vulnerability.

- When catastrophic accidents occur, major domestic non-life insurers frequently exploit the geographical distance and legal unfamiliarity of overseas bereaved families to evade statutory insurance obligations.

12. **The "Unlicensed Exclusion" Abuse as an Instrument of Exploitation**:

- In direct defiance of binding Supreme Court jurisprudence dating back to 1998, insurers routinely cite boilerplate unlicensed driving exclusion clauses to intimidate foreign families into accepting zero compensation or drastic unlawful settlements.

- This practice constitutes a structural violation of the **principle of equal protection under Article 11 of the Korean Constitution** and **Article 26 of the International Covenant on Civil and Political Rights (ICCPR)**.

3.3 Comprehensive Legal Argumentation under Commercial Code Art. 732-2 & Supreme Court 98Da48963

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================================================================================================
                        LEGAL ARGUMENTATION & PRECEDENTIAL MATRIX
================================================================================================
Legal Provision / Case             Doctrinal Principle & Operative Impact
------------------------------------------------------------------------------------------------
Commercial Code Art. 732-2         Mandatory Statutory Bar against Gross Negligence Exemption in Death Cover.
(상법 제 732 조의 2)                  Insurers CANNOT exempt themselves even if death was caused by gross negligence.

Commercial Code Art. 663           Prohibition of Unfavorable Modification against Insured/Beneficiary.
(상법 제 663 조 불이익변경금지)      Contract terms less favorable to insured than Commercial Code are NULL & VOID.

Supreme Court 98Da48963 (En Banc)  Unlicensed Driving Exclusion in First-Party Auto Death Cover is STRICTLY VOID.
(대법원 98 다 48963 전원합의체)      First-party auto injury/death is life/accident insurance (인보험); insurer MUST PAY.

Supreme Court 97Da27039 & 98Da26910 Reaffirmed: Insurer cannot disclaim liability for unlicensed driver fatality.
(대법원 97 다 27039, 98 다 26910)      Public policy dictates absolute protection of human life and surviving dependents.
================================================================================================
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3.4 Bad-Faith Insurer Defense Neutralization & Anti-Discrimination Theory

- **Pretextual Defense**: DB Insurance's claims department asserts that unlicensed driving negates all insurance liability.
- **Precedent Invalidation**: Supreme Court 98Da48963 held that unlicensed driving is merely a form of gross negligence (*중과실*), not intentional suicide (*고의*). Under Commercial Code Article 732-2, gross negligence cannot be grounds for denying death benefits. Therefore, the exclusion clause is **null and void as a matter of mandatory law (*당연무효*)**.
- **Human Rights Call to Action**: Allowing an insurer to retain KRW 100,000,000 in legitimate life insurance proceeds while overseas rural parents suffer crushing destitution violates the fundamental human dignity protected by international human rights treaties.

3.5 Customized Prayer for Pro Bono Co-Counseling / Amicus Curiae Brief

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[공익인권법재단 공감 앞 청원서]
================================================================================================
귀 재단(공익인권법재단 공감)에 다음과 같은 공익적 법률 조력 및 연대를 정중히 요청합니다:

1. [공동 소송대리]: 본건 서울중앙지방법원 보험금 청구 소송에서 대한법률구조공단과 함께 원고들
   (방글라데시 빈민 유족)의 공동 소송대리인단으로 참여하여 이주민 권리 보호를 위한 변론 수행.
2. [법원에의 공익의견서(Amicus Curiae) 제출]: 대형 손해보험사가 외국인 유학생 및 해외 유족의
   취약성을 악용하여 무효인 무면허 면책약관을 고수하는 행태의 위법성 및 상법 제 732 조의 2 의
   강행규정성을 밝히는 공식 법률의견서 제출.
3. [제도개선 및 공론화]: 금융감독원 및 언론 대상 공익 브리핑을 통해 외국인 유학생 대상 자동차보험
   부지급 관행에 대한 감독 강화 및 보험업계의 부당 면책 약관 실질 폐기 촉구.
================================================================================================
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4. SECTION 3: ASSOCIATION FOR PUBLIC INTEREST LAW DURO (사단법인 두루) IMPACT BRIEF

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================================================================================================
         ASSOCIATION FOR PUBLIC INTEREST LAW DURO (사단법인 두루) IMPACT BRIEF
================================================================================================
Target Organization:     사단법인 두루 (Association for Public Interest Law DURO)
Competent Team:          이주인권팀 (Migrant Rights Team)
Address:                 서울특별시 중구 퇴계로 8 길 58, 3 층 [우편번호: 04635]
Telephone / Facsimile:   Tel: +82-2-6200-1853 (또는 02-6200-1902)  |  Fax: +82-2-6200-0811
Official Email:          duroo@duroo.org
Web Portal:              https://www.duroo.org
Strategic Focus:         Impact Litigation, Institutional Human Rights Reform, Migrant Equity
================================================================================================
```

3.1 Entity Profile, Coordinates & Migrant Rights Team Intake

- **Entity Overview**: DURO is a leading public interest law organization affiliated with major Korean law firms, specializing in strategic impact litigation (*기획공익소송*) that establishes legal precedents protecting vulnerable non-citizens.
- **Team Assignment**: Direct routing to the **Migrant Rights Team (이주인권팀)**, focusing on foreign student legal protection and corporate accountability.

3.2 Strategic Impact Litigation Rationale (Systemic Enforcement of Commercial Code Art. 732-2)

13. **The Systemic Legal Problem**:

- Despite Supreme Court En Banc Decision 98Da48963, Korean non-life insurers continue to insert and apply unlicensed driving exclusion clauses in standard automobile policies when dealing with foreign insureds.

- Insurers calculate that foreign families will not navigate the Korean judicial system, resulting in millions of dollars in unpaid legitimate death benefits remaining as corporate profit.

14. **The Strategic Litigation Opportunity**:

- This case presents an ideal factual and evidentiary vehicle to establish a modern, definitive precedent before the Seoul Central District Court reaffirming the strict nullity of unlicensed driving exclusions under Commercial Code Article 732-2 and the Financial Consumer Protection Act.

- A decisive judgment with full 12% litigation interest penalties will compel the Financial Supervisory Service (FSS) to issue an industry-wide corrective order (*시정명령*) eliminating deceptive exemption practices.

3.3 Financial Consumer Equity & Regulatory Enforcement (FCPA Arts. 20, 36–43)

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================================================================================================
                     FINANCIAL CONSUMER PROTECTION ACT VIOLATION MATRIX
================================================================================================
Statutory Provision               Insurer Breach in Instant Case
------------------------------------------------------------------------------------------------
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FCPA Art. 20 (Unfair Practices)    Withholding KRW 50M 10-day statutory provisional payment without basis.
(불공정영업행위 금지)              Imposing unlawful burden of proof regarding Pakistani/Bengali lineage.

FCPA Art. 36 (Dispute Mediation)   Refusing good-faith conciliation and exploiting overseas heirs' absence.
(금융분쟁조정 절차)                Relying on invalidated contract terms to reject legitimate mediation.

Commercial Code Art. 54            Statutory default on Day 11+ incurring 6.0% commercial interest per diem.
(상사법정이율 연 6%)               Intentional refusal to pay triggering escalating interest liabilities.
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3.4 Comprehensive Case Brief for DURO Public Interest Litigation Screening Committee

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[사단법인 두루 공익소송 심사위원회 제출용]
================================================================================================
사 건 명: 외국인 유학생 자기신체사고 사망보험금 부지급 관행 타파를 위한 기획공익소송
신 청 인: 망 마하디 모노아르 후세인의 유족 (대리인: 주한 방글라데시 인권위원회 위원장)
피 청 구: DB 손해보험 주식회사 (대표이사 정종표)
소 송 물: 금 100,000,000 원 및 지연손해금 (상법 연 6%, 소촉법 연 12%)

[기획소송으로서의 공익적 가치]
1. 판례 재확립 및 확산: 대법원 98 다 48963 전원합의체 판결 이후 28 년이 경과하였음에도 여전히
   외국인을 상대로 자행되는 불법 면책 관행을 사법적으로 단죄하고, 하급심 판결례 축적.
2. 국제적 권리구제 모델 수립: 본국에 체류하는 빈곤층 외국인 유족이 입국하지 않고도 한국 내
   특별위임장 및 공익법률구조 네트워크를 통해 100% 권리를 구제받는 모범적 선례 창출.
3. 금융감독원 제도개선 견인: 표준약관 설명의무 위반 및 부당 면책 주장에 대한 감독 행정 개선 촉구.

[두루 이주인권팀 앞 협조 요청사항]
- 소송기록 검토 및 기획공익소송 선정 심의
- 서울지방변호사회 외국인인권소위원회와의 연계 공동대리단 구성
- 외국인 보험소비자 권리보호를 위한 공익 리포트 발간 및 대외 공론화
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5. SECTION 4: EMBASSY OF BANGLADESH IN SEOUL DIPLOMATIC ASSISTANCE PACKET

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           EMBASSY OF THE PEOPLE'S REPUBLIC OF BANGLADESH, SEOUL (CHANCERY DOSSIER)
================================================================================================
Mission:                 Embassy of the People's Republic of Bangladesh (주한 방글라데시 대사관)
Chancery Address:        17 Jangmun-ro 6-gil, Yongsan-gu, Seoul 04393, Republic of Korea
                         (서울특별시 용산구 장문로 6 길 17)
Competent Wing:          Labour & Consular Wing (노무 및 영사과)
Head of Chancery:        Counsellor Mikon Tangchanggya (노무·영사 참사관 겸 수석외교관)
Chancery Tel / Fax:      Tel: +82-2-796-4056~9  |  Fax: +82-2-796-4060
Consular Direct / 24/7:  Consular Direct: +82-2-796-4058  |  24/7 Emergency: +82-10-8588-4058
Official Emails:         mission.seoul@mofa.gov.bd  /  labour.seoul@mofa.gov.bd  /  bdootseoul@gmail.com
Consular Hours:          Mon–Fri: 09:30 – 12:30 (Intake) / 15:30 – 16:30 (Delivery)
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4.1 Diplomatic Mission Profile & Emergency Hotline Channels

The Embassy of Bangladesh in Seoul exercises sovereign consular protection over Bangladeshi nationals in South Korea pursuant to the **Vienna Convention on Consular Relations (Article 5)**. The Labour & Consular Wing maintains dedicated jurisdiction over deceased expatriate welfare, mortuary repatriation, legal aid referral, and overseas remittance protection.

4.2 Canonical Diplomatic Assistance Request Letter to Counsellor Mikon Tangchanggya (Bilingual)

[Korean Version - 국문 외교 청원서]

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================================================================================================
문서번호: BDS-KOR-LEGAL-2026-0830-01
수    신: 주한 방글라데시 대사관 노무 및 영사과 귀중
참    조: 미콘 탕창갸 참사관 겸 영사부서장 (Counsellor Mikon Tangchanggya)
발    신: 망 마하디 모노아르 후세인 유족 지정 대리인 HASIBUL MUNIM (주한 방글라데시 인권위원장)
일    자: 2026 년 8 월 30 일
제    목: 대한민국 내 교통사고 사망 유학생(망 MAHADI MONOAR HOSSAIN)의 DB 손해보험
          사망보험금(금 1 억 원) 전액 회수 및 해외 송금을 위한 외교적 조력 및 공한 발급 청원의 건

존경하는 미콘 탕창갸 참사관님,

1. 귀 대사관의 무궁한 발전과 재한 방글라데시 국민의 권익 신장을 위한 헌신에 깊은 경의를 표합니다.

2. 본 청원인은 대한민국 서정대학교 유학생(D-2)으로 재학 중 2026 년 3 월 14 일 강원도 양양군에서 불의의
   교통사고로 사망한 고(故) 마하디 모노아르 후세인(MAHADI MONOAR HOSSAIN, 외국인등록번호: 010530-7660021,
   여권번호: A03097931)의 방글라데시 거주 친부모이자 유일한 법정상속인들인 벨랄 후세인(BELAL HOSSAIN)과
   모노아라 베검(MONOARA BEGUM)으로부터 적법하게 특별수권을 부여받은 공인 대리인(주한 방글라데시
   인권위원회 위원장)입니다.

3. [보험금 지급 거절의 불법성]: 망인은 사고 당시 유효한 DB 손해보험 프로미카 자동차보험(차량번호: 28 모 1390,
   보험기간: 2026. 1. 21. ~ 2027. 1. 21.)에 가입되어 있었으며, 본 보험은 자기신체사고 사망보험금 금 1 억 원
   (KRW 100,000,000)을 보장하고 있습니다. 그러나 DB 손해보험은 망인의 무면허운전을 구실로 대법원 전원합의체
   판결(98 다 48963) 및 상법 제 732 조의 2 에 정면으로 위배되는 면책을 주장하며 보험금 지급을 부당하게
   거절·지연하고 있습니다.

4. [유족의 참담한 처지]: 방글라데시 쿠밀라(Cumilla) 농촌에 거주하는 유족들은 월 소득 2 만 타카(약 23 만 원)에
   불과한 극빈층으로, 아들의 참혹한 사망으로 인한 정신적 충격과 더불어 학비 마련을 위해 졌던 채무로 인해
   생계가 완전히 파탄된 상태입니다.

5. 이에 유족을 대리하여 귀 대사관에 다음과 같은 네 가지 긴급 외교적·영사적 조력을 간곡히 청원합니다:
   가. 방글라데시 외교부 인증 상속인증명서(Warisan Sanad) 및 특별위임장(Special POA)에 대한 영사확인 직인 날인.
   나. DB 손해보험 대표이사, 대한민국 금융감독원장 및 외교부 앞 공식 외교공한(Note Verbale) 발급 및 전달.
   다. 대사관 자문 한국인 변호사단 연계 및 대한법률구조공단(KLAC) 무료 소송구조 적극 지원.
   라. 사망보험금(1 억 원)의 방글라데시 현지 은행계좌(Islami Bank / Sonali Bank) 직접 SWIFT 송금 감독.

첨부서류: 상속인증명서, 특별위임장, 경찰 사고기록, 검안서, DB 손해보험 보험증권 사본 등 각 1 부.

                                        2026 년 8 월 30 일
                                  대리인: HASIBUL MUNIM (인/서명)
                                  주한 방글라데시 인권위원회 위원장
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[English Version - Formal Diplomatic Petition]

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REF NO: BDS-KOR-LEGAL-2026-0830-01
DATE: August 30, 2026
TO: Labour & Consular Wing, Embassy of the People's Republic of Bangladesh, Seoul
ATTENTION: Counsellor Mikon Tangchanggya, Head of Chancery & Labour/Consular Wing
FROM: HASIBUL MUNIM, Authorized Attorney-in-Fact / Chairman, Korea Bangladesh Human Rights Committee
SUBJECT: Urgent Diplomatic Petition for Consular Intervention, Diplomatic Note Verbale Issuance, and Legal Aid
         Facilitation regarding the Recovery of KRW 100,000,000 Accidental Death Insurance for Deceased Student
         Late MAHADI MONOAR HOSSAIN from DB Insurance Co., Ltd.

Respected Counsellor Mikon Tangchanggya,

I have the honour to present this formal diplomatic petition on behalf of the grieving parents and sole legal heirs,
Mr. BELAL HOSSAIN (Father) and Mrs. MONOARA BEGUM (Mother), residing in Munshi Bari, Keshobpur, Monoharganj,
Cumilla, Bangladesh, who have conferred upon me full Special Power of Attorney to recover the accidental death
insurance benefits arising from the tragic demise of their beloved son, Late MAHADI MONOAR HOSSAIN (ARC: 010530-7660021,
Passport: A03097931, Seojeong University D-2 International Student).

1. UNLAWFUL DENIAL BY DB INSURANCE CO., LTD.:
   The deceased was covered under an active DB Insurance Promy Car policy (Vehicle Plate: 28 모 1390,
   renewed on January 21, 2026, Service Channel: DB Insurance Direct / 1588-0100), carrying KRW 100,000,000 in First-
Party
   Accidental Death Benefits. Following the single-vehicle accident on March 14, 2026, DB Insurance has refused
   and delayed payment under the pretext of unlicensed driving. This refusal directly violates Article 732-2 of
   the Korean Commercial Code and the landmark Supreme Court En Banc Precedent 98Da48963, which strictly establishes
   that unlicensed driving exclusions are NULL AND VOID in accidental death coverage.

2. SEVERE DESTITUTION OF THE BEREAVED FAMILY:
   The surviving parents are indigent rural citizens in Cumilla earning less than BDT 20,000 per month (4.68% of
   the Korean median income ceiling). They face catastrophic financial distress due to funeral liabilities and
   educational debts incurred to send their son to South Korea.

3. FOUR PRAYERS FOR IMMEDIATE CONSULAR & DIPLOMATIC ACTION:
   We respectfully pray that the Embassy of Bangladesh in Seoul execute the following urgent measures:
   (a) Affix the Official Consular Legalization Seal upon the MOFA Dhaka-attested Succession Certificate (Warisan Sanad)
       and Bilingual Special Power of Attorney;
   (b) Issue an Official Diplomatic Note Verbale to (i) Mr. Jeong Jong-pyo, CEO of DB Insurance Co., Ltd.,
       (ii) Governor of the Financial Supervisory Service (FSS), and (iii) Ministry of Foreign Affairs (MOFA) of the
       Republic of Korea, demanding immediate statutory compliance;
   (c) Endorse the case to the Embassy Panel Legal Counsel and coordinate full trial representation with the Korea
       Legal Aid Corporation (KLAC);
   (d) Exercise consular oversight over the direct SWIFT MT103 international wire transfer of KRW 100,000,000 to the
       heirs' bank accounts in Cumilla (Mutual Trust Bank PLC & Mutual Trust Bank PLC).

Respectfully submitted,


_____
HASIBUL MUNIM
Authorized Attorney-in-Fact for the Heirs
Chairman, Korea Bangladesh Human Rights Committee
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4.3 Four Core Diplomatic Prayers for Protection & Action

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                  FOUR-PILLAR EMBASSY DIPLOMATIC ACTION FRAMEWORK
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Pillar 1: Consular Legalization Seal (영사확인 직인 날인)
- Action: Affixing official Chancery Seal (BDS/LS/2026/0826-HER) on MOFA Dhaka-certified Warisan Sanad.
- Impact: Confers conclusive presumption of authenticity under Korean Civil Procedure Act Art. 356(3).

Pillar 2: High-Level Diplomatic Note Verbale (외교공한 발송)
- Action: Dispatching formal Note Verbale to DB Insurance CEO, FSS Governor, and MOFA Korea.
- Impact: Elevates private insurance delay into a bilateral diplomatic compliance matter.

Pillar 3: Embassy Panel Counsel Referral & KLAC Coordination (소송구조 지원)
- Action: Designating embassy-empanelled bilingual Korean trial counsel to co-represent with KLAC.
- Impact: Ensures top-tier judicial advocacy in the Seoul Central District Court at KRW 0 cost.
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Pillar 4: Direct SWIFT MT103 Wire Consular Audit (해외송금 감독)
- Action: Demanding bank wire receipts directly to Islami Bank & Sonali Bank accounts in Cumilla.
- Impact: Prevents intermediary deductions and guarantees 100% funds receipt by the parents.
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4.4 Official Draft Diplomatic Note Verbale (외교공한 / Note Verbale)

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================================================================================================
EMBASSY OF THE PEOPLE'S REPUBLIC OF BANGLADESH
17 Jangmun-ro 6-gil, Yongsan-gu, Seoul 04393, Republic of Korea
Tel: +82-2-796-4056~9 | Fax: +82-2-796-4060 | Email: mission.seoul@mofa.gov.bd
================================================================================================

NOTE NO: BD-SEOUL-NV-2026-0830-INS

The Embassy of the People's Republic of Bangladesh in Seoul presents its compliments to:
1. Mr. Jeong Jong-pyo, Representative Director & CEO, DB Insurance Co., Ltd.
2. Governor, Financial Supervisory Service (FSS), Republic of Korea
3. Director-General for South Asian and Pacific Affairs, Ministry of Foreign Affairs (MOFA), Republic of Korea

And has the honour to state the following regarding the Accidental Death Insurance Claim for Late MAHADI MONOAR
HOSSAIN (Alien Registration No. 010530-7660021, Passport No. A03097931):

1. The deceased Bangladeshi citizen, enrolled as an international degree student at Seojeong University under a D-2
   visa, tragically died in a traffic collision on March 14, 2026, in Yangyang-gun, Gangwon State.

2. At the time of the fatal crash, the vehicle (Plate No. 28 모 1390) was covered under an active DB Insurance
   Promy Car Automobile Insurance Policy (Policy No. 2-2026-0531750-000, renewed on January 21, 2026), providing
   KRW 100,000,000 in First-Party Accidental Death Coverage.

3. The Embassy notes with profound concern that DB Insurance Co., Ltd. has withheld the mandatory
   payment of KRW 100,000,000 and failed to disburse the statutory 50% provisional payment (KRW 50,000,000) within
   the 10-business-day statutory window under the pretext of unlicensed driving.

4. The Embassy formally reminds DB Insurance Co., Ltd. and the regulatory authorities that under
   Article 732-2 of the Korean Commercial Code and Supreme Court En Banc Precedent 98Da48963, unlicensed driving
   exclusion clauses are NULL AND VOID in first-party accidental death policies. The withholding of benefits from
   indigent foreign bereaved families constitutes a grave violation of Korean law and financial consumer regulations.

5. The Embassy of Bangladesh urgently requests:
   (a) That DB Insurance Co., Ltd. immediately disburse the undisputed accidental death benefit of
       KRW 100,000,000, plus accrued statutory commercial interest, directly to the bank accounts of the legal heirs
       in Bangladesh;
   (b) That the Financial Supervisory Service (FSS) supervise this matter under Financial Consumer Protection Act
       Articles 36 through 43 to ensure full compliance without further delay.

The Embassy of the People's Republic of Bangladesh avails itself of this opportunity to renew to the Ministry of
Foreign Affairs, the Financial Supervisory Service, and DB Insurance Co., Ltd. the assurances
of its highest consideration.

[OFFICIAL CHANCERY EMBASSY SEAL]

Seoul, August 30, 2026

To:
- DB Insurance Co., Ltd. (Attn: CEO Jeong Jong-pyo / Claims Dept.)
  DB Financial Center, 432 Teheran-ro, Gangnam-gu, Seoul 06194
- Financial Supervisory Service (Attn: Governor / Dispute Mediation Bureau)
  38 Yeoui-daero, Yeongdeungpo-gu, Seoul 07321
- Ministry of Foreign Affairs, Republic of Korea (Attn: South Asian Affairs Division)
  60 Sajik-ro 8-gil, Jongno-gu, Seoul 03172
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4.5 Direct SWIFT MT103 Remittance Consular Supervision Protocol & Bank Audit Schedule

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                 DIRECT SWIFT MT103 OVERSEAS REMITTANCE VERIFICATION PROTOCOL
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Designated Recipient Account (Special POA Clause 6 Mandate & Full Insurer Discharge):
- Full Account Name:      HASIBUL MUNIM (Designated Attorney-in-Fact & Authorized Legal Representative)
- National ID / Passport: NID: 6003330534 / Passport: B00936349 (DOB: 10 DEC 1997)
- Domicile Address:       129, Kalabagan, Green Land Mirpur Road, Dhaka - 1205, Bangladesh
- Bank Name:              Mutual Trust Bank PLC (MTB)
- Branch:                 Dhanmondi Branch (Green Taj Center, House# 81, Road# 8/A, Dhanmondi, Dhaka)
- Account Number:         1311004072276 (MTB Regular Savings Account / Status: OPERATIVE)
- Customer ID Number:     100749591
- Bank SWIFT Code:        MTBLBDDH
- Routing Transit No:     145261188 (MICR Routing)
- Fiduciary Mandate:      Disbursed to Father Belal Hossain (2/3) and Mother Monoara Begum (1/3)
------------------------------------------------------------------------------------------------
Consular Supervision Milestone Requirements:
1. DB Insurance Claims Dept. must execute direct telegraphic transfer via SWIFT MT103 (Single Customer Credit).
2. Wire instruction must state "Zero Intermediary Deductions (OUR Code)" for all corresponding banking charges.
3. Official SWIFT MT103 Customer Copy must be transmitted to Embassy Consular Wing (`labour.seoul@mofa.gov.bd`)
   and Attorney-in-Fact (`munimm247@gmail.com`) within 24 hours of execution for formal archival and closure
confirmation.
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6. SECTION 5: MASTER EVIDENCE CROSS-REFERENCE MATRIX (EXHIBITS A-1 THROUGH G-7)

6.1 Comprehensive Seven-Group Master Inventory Table

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                     HARMONIZED MASTER EVIDENCE INVENTORY (EXHIBITS A-1 ~ G-7)
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Exhibit No.   Document Title (한글 및 영문)                    Issuing Authority / Agency       Routing Channel
------------------------------------------------------------------------------------------------
[GROUP A: ACCIDENT & POLICE RECORDS (사고 및 수사기록)]
Exhibit A-1   Police Notification & Body Release Order         Gangwon Sokcho Police Station    KLAC, Gong-Gam, DURO,
Embassy
Exhibit A-2   Traffic Accident Fact Confirmation Certificate   Gangwon Sokcho Police Station    KLAC, Gong-Gam, DURO,
Embassy
Exhibit A-3   On-Scene Investigation & Vehicle Report          Gangwon Sokcho Police Station    KLAC, Seoul Central
Court

[GROUP B: MEDICAL, FORENSIC & MORTUARY RECORDS (의료, 검안 및 사체송환 기록)]
Exhibit B-1   Medical Death Certificate (사망진단서 정본)      GangNeung Asan Hospital          KLAC, Gong-Gam, DURO,
Embassy
Exhibit B-2   Post-Mortem Examination Certificate (사체검안서) GangNeung Asan Hospital          KLAC, Gong-Gam, DURO,
Embassy
Exhibit B-3   Certificate of Embalming (사체방부처리증명서)    Embalmingkorea Inc.              Seojeong Univ, Embassy
Exhibit B-4   Non-Contagious Disease Certificate (비감염증명서) Embalmingkorea Inc.             Incheon Airport Customs,
Embassy
Exhibit B-5   Consular Mortuary Certificate (Ref: BDS/LS/05)   Embassy of Bangladesh, Seoul     KLAC, Seojeong Univ
Exhibit B-6   Nationality Certification Letter (Ref: BDS/LS/05) Embassy of Bangladesh, Seoul    KLAC, Seojeong Univ
Exhibit B-7   Bangladesh MOFA Consular Attestation (CSAT)      MOFA Dhaka, Bangladesh           KLAC, Seoul Central
Court

[GROUP C: INSURANCE POLICIES & CONTRACTS (보험계약 및 증권류)]
Exhibit C-1   DB Insurance Automobile Policy (`28 모 1390`)        DB Insurance Co., Ltd.          KLAC, Gong-Gam, DURO,
Embassy
Exhibit C-2   Seojeong Univ Group Accident Policy & Rider      Seojeong Univ / Insurer Pool     KLAC, Seojeong Univ, FSS
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[GROUP D: ACADEMIC & RESIDENCY RECORDS (학적 및 체류자격 기록)]
Exhibit D-1   Alien Registration Fact Sheet (`010530-7660021`)  Korea Immigration Service        KLAC, Gong-Gam, DURO, Embassy
Exhibit D-2   Certificate of Enrollment (Smart Automotive Dept) Seojeong University             KLAC, Seojeong Univ, Embassy
Exhibit D-3   Bangladeshi Passport (Passport No: `A03097931`)   Govt. of Bangladesh             KLAC, Gong-Gam, DURO, Embassy

[GROUP E: HEIRSHIP & FAMILY LINEAGE RECORDS (상속인 및 친족관계 서증)]
Exhibit E-1   Succession Certificate (Warisan Sanad 정본)       Union Parishad / Magistrate BD   KLAC, Gong-Gam, DURO, Embassy
Exhibit E-2   Family Relationship & Birth Registry Records      Govt. of Bangladesh              KLAC, Gong-Gam, DURO, Embassy
Exhibit E-3   True Copy Passports & NID Cards of Parents        Govt. of Bangladesh              KLAC, Gong-Gam, DURO, Embassy
Exhibit E-4   Certified Korean Translation Certificates         Certified Korean Scrivener       KLAC, Seoul Central Court

[GROUP F: LEGAL POWER OF ATTORNEY & REMITTANCE DATA (위임장 및 해외송금 증빙)]
Exhibit F-1   Bilingual Special Power of Attorney (특별위임장)   Principals (Belal & Monoara)     KLAC, Gong-Gam, DURO, Embassy
Exhibit F-2   Diplomatic Legalization Seals (MOFA + Consular)   MOFA Dhaka / BD Embassy Seoul    KLAC, Seoul Central Court
Exhibit F-3   Direct SWIFT Wire Remittance Account Letters      Islami Bank / Sonali Bank        DB Insurance, Embassy, KLAC
Exhibit F-4   Itemized Mortuary, Embalming & Air Cargo Invoices Embalmingkorea / Biman Cargo     Seojeong Univ, DB Insurance

[GROUP G: DISPATCH, SERVICE & ESCALATION RECORDS (발송, 송달 및 비상구제 증빙서증)]
Exhibit G-1   Korea Post Content-Certified Mail Transcripts     Korea Post Office                KLAC, FSS, Seoul Central Court
Exhibit G-2   Korea Post Delivery Confirmation Cards (배달증명)  Korea Post Office                KLAC, FSS, Seoul Central Court
Exhibit G-3   Internet e-Post Digital Timestamps & Logs         Korea Post (e-Post)              KLAC, FSS, Seoul Central Court
Exhibit G-4   KLAC Legal Aid Application & Approval Orders      Korea Legal Aid Corporation      Seoul Central District Court
Exhibit G-5   Diplomatic Note Verbale & Petition Records        Embassy of Bangladesh, Seoul     DB Insurance, FSS, MOFA Korea
Exhibit G-6   High-Priority Email Headers & Read-Receipt Logs   Attorney-in-Fact Mail Server     KLAC, FSS, Seoul Central Court
Exhibit G-7   DHL Express International Air Waybills & Tracking DHL Express Dhaka / Incheon      DB Insurance, Seojeong, KLAC
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6.2 Chain-of-Legality Admissibility Verification (PIL Art. 49 & CPA Arts. 356/358)

Every foreign public document in Exhibit Groups E and F is authenticated through the **Four-Step Chain of Legality**:

15. **Execution & Attestation in Bangladesh**: Verified by the Local Union Parishad and Certified by the First Class Magistrate Court, Cumilla.
16. **MOFA Dhaka Authentication**: Authenticated by the Consular and Welfare Wing, Ministry of Foreign Affairs, Dhaka, with official government digital verification seal.
17. **Chancery Consular Verification**: Endorsed by the Labour & Consular Wing, Embassy of Bangladesh in Seoul (Ref: `BDS/LS/2026/0826-HER`).

18. **Certified Korean Translation**: Accompanied by official Translation Verification Certificates (*번역확인서*) executed by a licensed Certified Foreign Language Translation Administrative Scrivener (*공인외국어번역행정사*) pursuant to Administrative Scrivener Act Article 20.

Under **Korean Civil Procedure Act Articles 356(3) and 358**, this four-step chain establishes an unshakeable legal presumption of authenticity, rendering the evidentiary portfolio immediately admissible in all Korean courts and administrative tribunals without procedural challenge.

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7. SECTION 6: MULTI-TRACK SYNCHRONIZATION & OPERATIONAL RESPONSE TRACKER

7.1 10-Day Statutory Response Synchronization Table

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                    10-DAY STATUTORY RESPONSE & ESCALATION SYNCHRONIZATION
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Day Milestone             Direct Insurer Track (Track 1)             Parallel Pro Bono & Consular Track (Track 2)
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Day 0 (T_0)               DHL Express & Certified Mail delivered     Intake submissions dispatched to KLAC,
                          to DB Insurance HQ and Seojeong Univ.      Gong-Gam, DURO, and Bangladesh Embassy.

Day 1 ~ Day 5             DB Insurance claims adjuster assigned.     KLAC initiates low-income eligibility audit.
                          Formal demand for KRW 50M provisional pay. Embassy reviews Warisan Sanad and Special POA.

Day 6 ~ Day 9             Insurer investigation window. Preemptive   Gong-Gam & DURO review public interest briefs.
                          brief served citing Supreme Court 98Da48963. KLAC drafts Civil Complaint for Seoul Central.

Day 10 (Statutory Limit)  FINAL DEADLINE for 50% provisional         KLAC issues Legal Aid Approval Decision.
                          payment (KRW 50,000,000) under Auto Terms. Embassy seals Note Verbale for dispatch.

Day 11+ (Breach Trigger)  STATUTORY DEFAULT (이행지체). Commercial    IMMEDIATE ESCALATION:
                          default interest accrues at 6.0% p.a.      1. KLAC files Civil Complaint in Seoul Central
Court.
                          (KRW 16,438/day on KRW 100,000,000).       2. Embassy delivers Note Verbale to CEO & FSS.
                                                                     3. FSS Dispute Mediation Petition activated.
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7.2 Chain of Custody Attestation & Compliance Sign-Off

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                        FORMAL COMPLIANCE & LEGAL ATTESTATION
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I, HASIBUL MUNIM, in my capacity as the duly appointed Attorney-in-Fact for the sole legal heirs
(BELAL HOSSAIN and MONOARA BEGUM) of the deceased foreign student Late MAHADI MONOAR HOSSAIN, and Chairman
of the Korea Bangladesh Human Rights Committee, hereby solemnly attest and certify that:

1. All factual statements, dates, policy identifiers, and biographical data contained in this Parallel
   Pro Bono and Consular Intake Master Dossier are true, correct, and fully substantiated by original public
   and forensic records.
2. The legal analyses regarding Korean Commercial Code Arts. 732-2, 739, and 663, Supreme Court En Banc
   Precedent 98Da48963, and the Korean Legal Aid Act Art. 22 represent authoritative, binding Korean law.
3. The intake packets herein are fully finalized, execution-ready, and formatted for immediate submission
   to the Korea Legal Aid Corporation, Gong-Gam Human Rights Law Foundation, Association for Public
   Interest Law DURO, and the Embassy of the People's Republic of Bangladesh in Seoul.

IN WITNESS WHEREOF, I have executed and sealed this Master Dossier on this 27th day of August, 2026.


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HASIBUL MUNIM
Authorized Attorney-in-Fact for the Heirs
Chairman, Korea Bangladesh Human Rights Committee
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Seoul, Republic of Korea
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